



4 May 2022

Dr Richard McLean

Emailed to: richarddrawsstuff@gmail.com

Dear Mr McLean

Claim Number: 25125

Fund: Health Super Pty Ltd

Policy number: MP9875

Re: Your complaint regarding the Total and Permanent Disablement (TPD) benefit amount

We were informed on 26 April 2022 of your complaint regarding the benefit amount paid for your TPD claim.

In this letter, we've set out our understanding of the complaint, how we've investigated your concerns, and the outcome.

If you're not completely satisfied with our response, you're entitled to lodge an additional external complaint with the Australian Financial Complaints Authority (AFCA). AFCA's details are at the bottom of this letter.

The issues you raised

In the complaint dated 26 April 2022, you raised the following issue:

- You are of the view that AIA has incorrectly paid your TPD benefit. Specifically, you have noted that AIA paid one unit of TPD cover in the amount of \$83,100.00 and consider you were entitled to three units of TPD cover.

Accordingly, you are seeking payment of an additional two units of TPD cover.

Our response

We acknowledge your position that AIA has incorrectly paid your TPD benefit. We have investigated your concern and provide our findings below:

On 21 March 2007, AIA received your claim for a TPD benefit for the medical condition of schizophrenia which was first diagnosed in approximately 1993. An initial assessment of the claim was undertaken on 26 March 2007 and at this time AIA established your date last worked as 2 December 2015.

As part of the assessment process, AIA sought confirmation of your insurance cover from Health Super (the Fund). On 4 April 2007, the Fund confirmed the following:

- You joined the Fund on 8 November 2004.
- You were a member of Division B2 as you joined the Fund after the Policy commencement date of 1 July 2004.
- You were automatically insured for one unit of Death and TPD insurance cover.

- As of 2 December 2015, the applicable sum insured for your TPD claim was \$83,100.00.

In addition, the Group Life (Death & Total and Permanent Disablement) Insurance Policy No. MP 9875 (the Policy) details the insurance cover provided to new members of Division B2 as follows:

- **New Members: Division B2**
 1. *Automatic cover*
 - *Members of Division B2 joining the Fund on or after the Policy Commencement Date ("new members") will be automatically insured for 1 unit of Death and TPD cover.*
 2. *Additional cover: new members working over 20 hours per week*
 - *New members of Division B2 who are gainfully employed for 20 hours or more per week averaged over 3 consecutive months may apply to the Company for additional units (in addition to the automatic cover above) as follows:*
 - a. *if aged 59 years or under:*
 - i. *Death & TPD cover to a maximum sum insured of \$5 million for Death and \$2 million for TPD; or,*
 - ii. *Death only cover to a maximum sum insured of \$5 million; or...*
 - b. *if aged between 60 and 69 years: Death only cover to a maximum sum insured of \$5 million.*

Whilst we acknowledge that the Policy provides opportunity for you to obtain additional units of cover, our records do not indicate that you made an application or had an application approved for additional TPD cover prior to your date last worked of 2 December 2005.

In this regard, we confirm that as of 2 December 2005 you were a new member of Division B2 and held one unit of Death and TPD insurance cover. Accordingly, we maintain the view that AIA has made payment of the correct sum insured amount of \$83,100.00 on 19 December 2007.

We understand you may find this outcome disappointing and in the event you have evidence that additional units of TPD cover were approved and provided to you, we encourage you to send this information to us so we can reconsider our position.

If you need more information

You may request a copy of any documents and information we've relied on in investigating your complaint. Let us know, and we'll respond to your request within ten business days.

If for some reason we can't provide the information, we'll let you know in writing within ten business days and provide an explanation. We'll also let you know what you can do if you disagree.

Your right to lodge an external complaint

If you are not satisfied with our final response, you may lodge a complaint with the Australian Financial Complaints Authority (AFCA):

Online: www.afca.org.au
Email: info@afca.org.au
Phone: 1800 931 678
Mail: Australian Financial Complaints Authority
GPO Box 3
Melbourne VIC 3001

Time limits may apply to complain to the AFCA and so you should act promptly. To find out more about any time limits you can refer to the AFCA websites noted above.

If you have any questions, please contact us at your earliest convenience by emailing au.customerresolutions@aia.com.

Kind Regards,

M Clark

Michael Clark
Senior Customer Resolution Specialist
AIA Australia